

requirements of CRC 3.1324(b). CRC 3.1324(b) requires the filing of a separate declaration that specifies “(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” The supporting declaration fails to address the effect of the amendments, when the facts giving rise to the amendments were discovered, and the reasons the request for amendment was not made earlier. The December 23, 2026, CPRA request was submitted over 6 months ago. No explanation has been provided regarding why leave to add the December CPRA request was not filed sooner.

CCP § 464. “The plaintiff and defendant, respectively, may be allowed, on motion, to make a supplemental complaint or answer, alleging facts material to the case occurring after the former complaint or answer.” CCP § 464. While both the December CPRA request and June 12, 2026, fire occurred after the filing of the original Petition, the motion fails to explain how each event is factually material to the November 2025 CRPA request.

The motion is **DENIED**. Petitioner provided a proposed Order that will be modified to reflect the Court’s ruling.

MEGASTAR FINANCIAL CORP VS. TURNER, ET AL.

CASE NUMBER: 25CV-0207787

Tentative Ruling on Review: This matter is on calendar for review regarding status of default. Default was entered as to Defendant Tessa A. Garrett on August 12, 2025. Default was entered as to Defendant Kyle K. R. Turner on July 8, 2026. Defendant The Secretary of Housing and Urban Development stipulated to a judgment on July 18, 2025. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a judgment is not on file prior to the next hearing, Plaintiff is ordered to file a status statement no less than five court days prior to the hearing explain the delay. **No appearance is necessary on today’s calendar.**

PEOPLE OF THE STATE OF CALIFORNIA VS. HIGHFILL

CASE NUMBER: 25CV-0208672

Tentative Ruling on Motion to Set Aside Summary Judgment Discharge Forfeiture and Exonerate Bail: Defendant United States Fire Insurance moves to set aside summary judgment, discharge forfeiture, and exonerate bail. No opposition has been filed. Defendant’s request for judicial notice is **GRANTED**.

Defendant alleges two grounds for the exoneration of the bond. First, they allege that the criminal defendant was referred to probation and by operation of law that the bond was exonerated pursuant to Penal Code § 1195 and *People v. Safety National Insurance Co.* (2007) 150 Cal.App.4th 11. The moving party is incorrect, as the minute order from January 14, 2025 does not show a referral to probation but rather that there was a delayed sentencing. Defendant has failed to establish grounds for exoneration pursuant to Penal Code § 1195.

Next, Defendant argues that Court failed to forfeit the bond in open court. Penal Code § 1305(a) requires the bond to be forfeited in open court. The February 13, 2025 minute order indicates the bond was forfeited. However, the court transcript shows that the judge failed to declare the bond forfeited in open court. Based on the foregoing, the Court finds that exoneration is warranted pursuant to Penal Code § 1305(a) and *People v. Amwest Surety Ins.* (2004) 125 Cal.App.4th 547, 550.

The motion is **GRANTED**. A proposed order was lodged with the Court and will be executed.

PERRY VS. FARMER

CASE NUMBER: 26CH-0209631

Tentative Ruling on Motion for Attorney’s Fees: Respondent Mark Farmer moves for recovery of attorney’s fees. The motion was originally calendared for hearing on July 6, 2026, but the hearing was continued to today’s date. Petitioner Candilyn Perry was timely served with the motion by mail. On July 22, 2026, Petitioner, now